

November 3, 2023

VIA EMAIL: [REDACTED]

Dear [REDACTED]:

Re: *Freedom of Information and Protection of Privacy Act (the "Act")*
Request for Access to Records
Reference No. 0580-23-15

I am writing in response to your request dated September 25, 2023 for the records related to "detailed information about the Ladysmith Harbour Economic Development Corporation, including its purpose, mission, mandate, operating budget and governance structure.". Enclosed are copies of all responsive records.

Please contact me at sbouma@ladysmith.ca if you have any questions in this regard.

Yours truly,

Sue Bouma
FOI Head
Manager of Corporate Services

Enclosures

July 5, 2023

Minister of Water, Land and Resource Stewardship
The Province of British Columbia
PO Box 9012 Stn Prov. Govt.
Victoria, BC V8M 9L6
Attention: Rudi Mayser, Resource Manager, Authorizations

Dear Rudi,

Re: **Abandonment of Marina Lease Number 106431**
Our file no. 1407751

This letter is to notify you that the Corporation of the Town of Ladysmith (the "Town") will be abandoning its lease under marina lease number 106431 dated for reference December 1, 1999 (the "Lease") with the Province of British Columbia (the "Province") with an effective date of December 31, 2023 (the "Effective Date").

The Town is abandoning its Lease with the Province pursuant to section 45 of the *Land Act [RSBC 1996] c. 245*, which provides:

- 45 (1) A person holding a disposition of Crown land may abandon and terminate a disposition by notifying the minister in writing.
- (2) All improvements on the land and all money paid on account are absolutely forfeited to and become the property of the government on abandonment and termination of a disposition under subsection (1).

For your reference, a copy of the Lease is attached to this letter.

We confirm our understanding that all improvements on the leased premises will become the property of the Province on the Effective Date. We also confirm that no property taxes will be owing in respect of the leased premises on the Effective Date. If you should have any questions, please contact our office as soon as possible.

Sincerely,



TOWN OF LADYSMITH

Allison McCarrick
Chief Administrative Officer
Town of Ladysmith

Per:

Item from the Closed Meeting of Council held March 7, 2023

CE 2023-008

That Council:

1. Approve the changes to the DL2016 Corporation Articles of Incorporation in Attachment A of the March 7, 2023 staff report to Council and direct staff to apply to the Inspector of Municipalities for approval of the amendments pursuant to section 185 of the *Community Charter*;
2. Rise and report on Recommendation 2 once Inspector Approval is granted and the DL 2016 Holdings Corporation Board of Directors have been notified.

6. MINUTES

6.1 Minutes of the Regular Meeting of Council held September 26, 2023

CS 2023-232

That Council approve the minutes of the Regular Meeting of Council held September 26, 2023.

Motion Carried

7. BYLAWS

7.1 Bylaws for Adoption

7.1.1 "Town of Ladysmith Fees and Charges Bylaw 2008, No. 1644, Amendment Bylaw 2023, No. 2151"

CS 2023-233

That Council adopt "Town of Ladysmith Fees and Charges Bylaw 2008, No. 1644, Amendment Bylaw 2023, No. 2151".

Motion Carried

7.1.2 "Town of Ladysmith Financial Plan Bylaw 2023, No. 2141, Amendment Bylaw 2023, No. 2157"

CS 2023-234

That Council adopt "Town of Ladysmith Financial Plan Bylaw 2023, No. 2141, Amendment Bylaw 2023, No. 2157".

Motion Carried

3. OPEN MEETING AND ACKNOWLEDGEMENT (7:00 P.M.)

Mayor Stone called this Regular Meeting of Council to order at 7:00 p.m., recognizing with gratitude that it was taking place on the unceded territory of the Stz'uminus First Nation.

Mayor Stone acknowledged the National Day of Truth and Reconciliation.

4. AGENDA APPROVAL

CS 2023-231

That Council approve the agenda for this Regular Meeting of Council for October 3, 2023.

Motion Carried

5. RISE AND REPORT- Items from Closed Session

Council rose from Closed Session at 6:16 p.m. with report on the following items:

Item from the Closed Meeting of Council held September 26, 2023

CE 2023-063

That Council:

1. Receive the approval from the Inspector of Municipalities for changes to the Articles of Incorporation for the Ladysmith Harbour Economic Development Corporation (formally the DL2016 Holdings Corporation) provided in Attachment A to the September 26, 2023, in-camera report to Council;
2. Dismiss with thanks from the board of directors of the Ladysmith Harbour Economic Development Corporation, Directors Rob Hutchins, Alan Newell and Richard Wiefelspuett pursuant to Article 14.10 of the Corporation's articles of incorporation.

Item from the Closed Meeting of Council held July 4, 2023

CE 2023-045

That Council approve the additional changes requested by the Inspector of Municipalities to the Articles of Incorporation for the Ladysmith Harbour Economic Development Corporation (formally DL 2016 Holdings Corporation).



BC Company Summary

For

THE LADYSMITH HARBOUR ECONOMIC DEVELOPMENT CORPORATION

Date and Time of Search: October 31, 2023 12:34 PM Pacific Time

Currency Date: May 23, 2023

ACTIVE

Incorporation Number: BC0857041

Name of Company: THE LADYSMITH HARBOUR ECONOMIC DEVELOPMENT CORPORATION

Business Number: 855847455 BC0001

Recognition Date and Time: Incorporated on July 17, 2009 05:07 PM Pacific Time

In Liquidation: No

Last Annual Report Filed: July 17, 2023

Receiver: No

COMPANY NAME INFORMATION

Previous Company Name

DL 2016 HOLDINGS CORPORATION

Date of Company Name Change

April 24, 2023

REGISTERED OFFICE INFORMATION

Mailing Address:

1300 - 128 PENDER STREET WEST
VANCOUVER BC V6B 1R8
CANADA

Delivery Address:

1300 - 128 PENDER STREET WEST
VANCOUVER BC V6B 1R8
CANADA

RECORDS OFFICE INFORMATION

Mailing Address:

1300 - 128 PENDER STREET WEST
VANCOUVER BC V6B 1R8
CANADA

Delivery Address:

1300 - 128 PENDER STREET WEST
VANCOUVER BC V6B 1R8
CANADA

DIRECTOR INFORMATION

Last Name, First Name, Middle Name:

Belobaba, Jake

Mailing Address:

Redacted - S. 22(1)

Delivery Address:

Redacted - S. 22(1)

Last Name, First Name, Middle Name:

Erin, Anderson

Mailing Address:

Redacted - S. 22(1)

Delivery Address:

Redacted - S. 22(1)

Last Name, First Name, Middle Name:

McCarrick, Allison

Mailing Address:

Redacted - S. 22(1)

Delivery Address:

Redacted - S. 22(1)

Last Name, First Name, Middle Name:

Ray, Gauthier

Mailing Address:

Redacted - S. 22(1)

Delivery Address:

Redacted - S. 22(1)

NO OFFICER INFORMATION FILED AS AT July 17, 2023.
